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[TENTATIVE] ORDER DENYING DEFENDANT GLORIA TREVI'S MOTIONS FOR DISCLOSURE OF PLAINTIFFS and GRANTING MOTIONS TO SEAL

I. INTRODUCTION

These related actions arise from allegations of childhood sexual abuse, sexual battery, assault, and exploitation. Plaintiffs Jane Doe K.C. 1, Jane Doe A.H. 2, Jane Doe 3, and Jane Doe 4 (collectively, "Plaintiffs") allege that Defendants Gloria De Los Angeles Trevino Ruiz aka Gloria Trevi ("Trevi"), Sergio Gustavo Andrade Sanchez aka Sergio Andrade ("Andrade"), and Maria Raquenel Portillo Jimenez aka Mary Boquitas and Mary Raquenel ("Portillo") sexually abused and exploited Plaintiffs while they were minors.

On July 20, 2026, Defendant Trevi filed the instant motions for an order disclosing Plaintiffs' identities. Plaintiffs filed oppositions on August 3, 2026, and Trevi filed replies on August 7, 2026. The parties also filed related motions to seal portions of the briefing and supporting documents containing Plaintiffs' identifying information

Request for judicial notice

The parties reference RJN filed by Defendant Trevi, however the Court received no such filing.

Evidentiary objections

All evidentiary objections are OVERRULED.

II. LEGAL STANDARD

Unless confidentiality is required by law, court records are presumed to be open to the public pursuant to a potent "open court" policy undergirded by the First Amendment and favoring the public nature of court proceedings. (Cal. Rules of Court, rule 2.550(c); see NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1199-10.) Consequently, pleadings, motions, discovery documents, and other papers may not be filed under seal merely by stipulation of the parties; filing under seal requires a court order.¹ (Cal. Rules of Court, rule 2.551(a); see H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 888.)

In order to issue a sealing order, the Court must make expressly find that: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d)(1)-(4), (e); see *McGuan v. Endovascular Techs., Inc.* (2010) 182 Cal.App.4th 974, 988.) The constitutional policy favoring for disclosure must be balanced against other factors, e.g., privacy rights. (See *People v. Jackson* (2005) 128 Cal.App.4th 1009, 1026-27.) The Court acts within its discretion in making factual determinations on a motion to seal. (*Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1285.)

III. ANALYSIS

Defendant Trevi moves for an order requiring Plaintiffs to disclose their true identities and proceed in this action under their legal names pursuant to California Rules of Court, rules 2.550 and 2.551.

Trevi argues that Plaintiffs can no longer justify proceeding anonymously. She contends that Plaintiffs' identities and their connection to the underlying allegations have been publicly known for decades through media reports, books, and interviews. Trevi also argues that, since this action was filed, certain Plaintiffs have publicly discussed the allegations and the litigation on social media and YouTube and promoted books concerning the same underlying events, all while continuing to proceed anonymously in this action. According to Trevi, Plaintiffs' own public conduct undermines their claimed need for privacy and shows that the information they seek to protect is already publicly known. (Motion, pp. 17-18.)

Trevi further argues that Plaintiffs cannot demonstrate a concrete threat of harm or particular vulnerability sufficient to warrant anonymity under *Roe v. Smith* (2025) 116 Cal.App.5th 227. According to Trevi, Plaintiffs' asserted fears of ridicule, threats, attacks, and emotional harm are generalized and speculative, and Plaintiffs have not identified a specific concrete threat arising from disclosure of their identities. Trevi also argues that Plaintiffs are now adults and therefore are not particularly vulnerable merely because the alleged underlying events occurred when they were minors. (Motion, p. 19.)

Finally, Trevi argues that Plaintiffs' continued anonymity prejudices her by allowing Plaintiffs to publicly identify and accuse Trevi while shielding their own identities. Trevi contends this creates an unfair asymmetry, harms her ability to respond publicly to the allegations, and imposes additional burdens on the litigation by requiring filings containing Plaintiffs' identities to be submitted in both redacted and sealed form. (Motion, p. 20.)

Plaintiffs oppose the motion, arguing that *Roe v. Smith* does not change the standard previously applied by the Court and is distinguishable. Plaintiffs point out that *Roe* involved defamation claims and was decided without declarations or other evidence supporting anonymity, whereas Plaintiffs contend there is a substantial evidentiary record here concerning threats, harassment, and potential harm. Plaintiffs also emphasize that *Roe* itself recognized that allegations concerning sexual conduct are highly sensitive and private, particularly where the underlying events occurred when the parties were minors. (Opposition, pp. 3-4.)

Plaintiffs further argue that Trevi has not shown any changed circumstances warranting reversal of the Court's prior order. They maintain that none of the Plaintiffs has publicly identified themselves as a litigant in this action and that Trevi's evidence concerning prior media coverage and books either predates the Court's order or merely connects Plaintiffs to the underlying events, not to this lawsuit. Plaintiffs similarly contend that the YouTube videos relied upon by Trevi do not contain statements identifying any Plaintiff as a party to this action. (Opposition, pp. 5-10.)

Finally, Plaintiffs argue that the safety concerns supporting anonymity remain and have become better documented since the Court's prior ruling. They contend that the relevant risk is not that Defendants will learn their identities, which Defendants already know, but that Plaintiffs will be publicly identified to Trevi's followers and others on social media and subjected to further harassment or threats. Plaintiffs argue that Trevi suffers little prejudice from continued anonymity because she knows who Plaintiffs are, whereas disclosure would permanently identify Plaintiffs to the public as parties to this action. (Opposition, pp. 2, 4-5.)

The Court is not persuaded that Trevi has demonstrated circumstances warranting reconsideration of Plaintiffs' continued use of pseudonyms. Although Trevi presents evidence that certain Plaintiffs have publicly discussed the underlying events, the relevant question is whether Plaintiffs have publicly identified themselves as litigants in this action. The evidence presented does not establish that they have.

Further, the Court agrees with Plaintiffs that *Roe v. Smith* is factually distinguishable. In *Roe*, the plaintiffs sought to proceed anonymously based on the allegations in their pleadings and did not submit declarations or other evidence supporting their claimed need for anonymity. The Court of Appeal emphasized that the record contained no evidence establishing the plaintiffs' asserted fears of harm and concluded that the allegations in the pleadings, standing alone, were insufficient. (*Roe*, supra, 116 Cal.App.5th at pp. 237, 243-244.)

Here, by contrast, the Court has an evidentiary record supporting Plaintiffs' asserted concerns. Plaintiffs have submitted sworn declarations describing threats, harassment, and fears for their own safety and the safety of their families, together with supporting exhibits documenting the alleged harassment. Plaintiffs contend that these concerns have continued, and in some respects increased, since the Court entered its prior pseudonym order. Thus, unlike *Roe*, the asserted risk of harm is not based solely on allegations in the pleadings or generalized concerns about reputational or economic injury. (Opposition, pp. 3–5.)

Moreover, the nature of the asserted harm differs. In *Roe*, the trial court relied in part on the plaintiffs' concern that future employers might discover the lawsuit through an Internet search. Here, Plaintiffs assert a risk of harassment, threats, and violence from third parties and social-media followers if their identities as litigants are publicly disclosed. Plaintiffs have also submitted declarations and supporting evidence describing harassment and threats they have already experienced, which they contend demonstrates the risk of further harm if their identities as Plaintiffs in this action are publicly disclosed. (Opposition, pp. 4, 11.)

The Court therefore finds that Plaintiffs' asserted privacy and safety interests remain sufficient to support their continued use of pseudonyms. The evidence reflects more than a generalized concern of embarrassment or reputational harm and supports Plaintiffs' contention that publicly identifying them as litigants in this action presents a risk of further harassment, threats, and retaliation. Moreover, Trevi already knows Plaintiffs' identities and is able to defend against their claims. On balance, the Court finds that Plaintiffs' interests in maintaining anonymity continue to outweigh the public interest in disclosure and that Trevi has not demonstrated a sufficient basis to disturb the Court's prior order permitting Plaintiffs to proceed under pseudonyms.

Motions to seal

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For the reasons discussed above, the Court finds that Plaintiffs' privacy and safety interests constitute an overriding interest that overcomes the right of public access to the identifying information. That overriding interest supports sealing because disclosure of the information would defeat the Court's determination that Plaintiffs may continue to proceed under pseudonyms. There is a substantial probability that Plaintiffs' interests would be prejudiced absent sealing because disclosure would reveal, or permit the public to determine, their identities as litigants in these actions. The requested sealing is narrowly tailored because it is limited to Plaintiffs' true identities and information from which those identities may be determined, rather than the entirety of the parties' filings. No less restrictive means would adequately protect Plaintiffs'

anonymity.

Thus, the Court GRANTS the parties' motions to seal in both related actions. The portions of the parties' filings containing Plaintiffs' true names or other information which their identities as Plaintiffs may be determined shall remain under seal.

IV. ORDER

The Court DENIES Trevi's motion to disclose Plaintiffs identities. The Court GRANTS motions to seal.

Defendant Trevi to give notice.

Dated: August 14, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT